



CHAPTER xvi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Helensburgh Gas.

A.D. 1926.

[16th June 1926.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament:

62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed.

Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the Helensburgh Gas Order Confirmation Act 1926.

Short title.

A.D. 1926.

SCHEDULE.

HELENSBURGH GAS.

Provisional Order to authorise the provost magistrates and councillors of the burgh of Helensburgh to extend their gasworks and for other purposes.

WHEREAS the provost magistrates and councillors of the burgh of Helensburgh (hereinafter referred to as "the Town Council") are the local authority within the burgh of Helensburgh (hereinafter referred to as "the burgh") and the commissioners therein for the purposes of the Burghs Gas Supply (Scotland) Acts 1876 to 1918 (hereinafter referred to as "the Burghs Gas Acts"):

And whereas by virtue of the powers conferred by the Burghs Gas Acts the Town Council in the year one thousand eight hundred and ninety-nine acquired the gasworks and undertaking of the Helensburgh Gas Company Limited:

And whereas the Town Council have since maintained the said gasworks and undertaking and have supplied gas within the burgh and to districts and places adjacent thereto:

And whereas the consumption of gas is and has for some time been rapidly increasing and the existing gasworks are occupied to their utmost available capacity and afford no room for any adequate extension or increase in the manufacture and storage or the supply of gas:

And whereas it is expedient that the Town Council should be authorised to erect construct equip and maintain gasworks on the lands (being part of Grant Street Helensburgh) described in the Schedule to this Order and thereon to manufacture store and supply gas and to manufacture and deal in the residual products arising therefrom:

And whereas it is expedient that the further powers hereinafter contained should be conferred on the Town Council:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 : A.D. 1926.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Helensburgh Gas Order 1926. Short title.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same (which date is hereinafter referred to as “the commencement of this Order”). Commencement of Order.

3. In this Order unless there be something in the subject or context repugnant to such construction the following expressions shall have the meanings in this section respectively assigned to them (that is to say) :— Interpretation.

“The burgh” means the burgh of Helensburgh ;

“The Town Council” means the provost magistrates and councillors of the burgh for the time being ;

“Burghs Gas Acts” means the Burghs Gas Supply (Scotland) Acts 1876 to 1918 ;

“The gas undertaking” means and includes the gasworks and works connected therewith now vested in the Town Council and the works authorised to be constructed by this Order and all lands buildings estate right title property powers privileges and effects pertaining thereto and every part thereof respectively ;

“The sheriff” means the sheriff of Stirling Dumbarton and Clackmannan or his substitute at Dumbarton.

4. The Town Council may stop up and discontinue the user by the public of so much of Grant Street within the burgh as is included within the lands described in the Schedule to this Order. Power to stop up part of Grant Street.

5.—(1) Subject to the provisions of this Order the Town Council may upon the lands described in the Schedule to this Order erect maintain alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making Powers to maintain gasworks and convert residual products.

A.D. 1926. storing and supplying gas and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas by them.

(2) The Town Council may also—

- (a) purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Town Council are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Town Council in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them; and
- (b) purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid:

But the Town Council shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Town Council or purchased from other gas undertakings is merely subsidiary.

New gas-works &c. to be part of gas undertaking.

6. Subject to the provisions of this Order the gasworks authorised to be constructed by the Town Council under the powers of this Order and the lands described in the Schedule to this Order shall for all purposes be comprised in the gas undertaking.

As to construction and placing of pipes &c.

7. In order to enable the Town Council to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Town Council may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Town Council's mains and the meter so far as such pipes and fittings are intended to be covered over:

- (2) The Town Council may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time : A.D. 1926.
- (3) A copy of the specification shall be kept exhibited in the gas collector's office of the Town Council :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Town Council's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Town Council and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Town Council Any officer of the Town Council duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Town Council's specification or if the meter is not placed as required by this section the Town Council may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Town Council refuses a supply of gas under the provisions of this section may appeal to the sheriff against such refusal and the sheriff may after hearing the parties and considering any questions as to the reasonableness of the Town Council's specification make such order as seems to him proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid and the decision of the sheriff shall be final.

8. The costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Costs of Order.

[Ch. xvi.]

Helensburgh Gas [16 & 17 GEO. 5.]
Order Confirmation Act, 1926.

A.D. 1926. — Town Council out of the revenues of the gas undertaking or out of moneys to be borrowed by them for the purpose of paying the said costs charges and expenses which moneys they are hereby authorised to borrow in like manner as they are authorised to borrow under the Burghs Gas Acts Provided that if such costs charges and expenses are paid out of borrowed money the same shall be repaid within five years from the commencement of this Order.

The SCHEDULE referred to in the foregoing Order.

LANDS FOR GASWORKS.

The area of land (being part of Grant Street Helensburgh) situate in the burgh of Helensburgh parish of Row and county of Dumbarton bounded as follows On the north by East Princes Street Helensburgh along which street it extends 60 feet or thereabouts on the east by property belonging or reputed to belong to the provost magistrates and councillors of the burgh of Helensburgh along which property it extends 186 feet 3 inches or thereabouts on the south by Grant Street Helensburgh across which street it extends 60 feet or thereabouts and on the west by other property belonging or reputed to belong to the provost magistrates and councillors of the burgh of Helensburgh along which property it extends 188 feet 1 inch or thereabouts.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
Adastral House, Kingsway, London, W.C. 2; 28, Abingdon Street, London, S.W. 1;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
or 120, George Street, Edinburgh;
or through any Bookseller.